

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.: _____

-----X
Malique Haynes

Plaintiff,

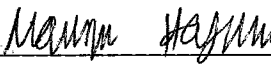
Against

THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF
THE 115 PRECINCT, TAX # 963465, OTHER CITY OF
NEW YORK POLICE OFFICERS INVOLVED IN
THE ARREST OF Malique Haynes WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I
– V AS IT PERTAINS TO THE INCIDENT THAT
Arose ON OCTOBER 3, 2020

Defendants.

-----X
I, Malique Haynes, state that I have been read the foregoing and know the contents thereof; the
same is true to my own knowledge, except as to the matters therein stated to be alleged on information
and belief, and as to those matters, I believe it to be true. I affirm that the foregoing statements are
true, under penalties of perjury.

Dated: Bayside, New York
November 29, 2021



Malique Haynes

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**-----X
MALIQUE HAYNES

Plaintiff,

- against -

**THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF
THE PSA 9 PRECINCT, TAX # 958234, CHRISTOPHER
SINGH, TAX # 961288, OF THE PSA 9 PRECINCT
OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN
THE ARREST OF MALIQUE HAYNES WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I
- V AS IT PERTAINS TO THE INCIDENT THAT
AROSE ON OCTOBER 3, 2020,**

Defendants.
-----X**TO THE ABOVE-NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of the New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 29, 2021

Index No.:

Purchased:

Plaintiff designates
QUEENS County as the place of trial

The basis of the venue is where the
tort arose.

Jury Trial Demanded

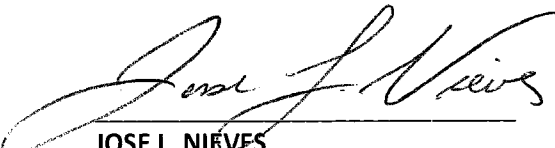
Plaintiff resides at
MALIQUE HAYNES
14-15 Mott Avenue, APT 1G
Far Rockaway, NY 11691

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**NEW YORK CITY POLICE DEPARTMENT
MICHAEL APLERS, P.O., TAX NO #958234,
PSA 9th Precinct
92-15 Northern Boulevard
Jackson Heights, NY 11372-1747**


JOSE L. NIEVES

Attorney for Plaintiff
213-37 39th Avenue, Suite 184
Bayside, NY 11361-2071

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.: _____

-----X
MALIQUE HAYNES

Plaintiff,

VERIFIED COMPLAINT

Against

THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF
THE 115 PRECINCT, TAX # 963465, OTHER CITY OF
NEW YORK POLICE OFFICERS INVOLVED IN
THE ARREST OF MALIQUE HAYNES WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I
- V AS IT PERTAINS TO THE INCIDENT THAT
AROSE ON OCTOBER 3, 2020

Defendants.

-----X
MALIQUE HAYNES, by his attorney, JOSE L. NIEVES, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **MALIQUE HAYNES** was a resident of QUEENS County, City and State of New York.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 3rd day of October , 2021 and within ninety (90) days after the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place time and manner in which the claim rose, the items of damage and injuries sustained so far as was then determinable.
4. At least thirty (30) days have elapsed since the service of the claim prior to commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been

commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the municipal Defendant's request for an oral examination pursuant to Section 50-H of the General Municipal law and/or the Public Authorities Law made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, were and are Officers and/or employees of the defendant, **CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**.

7. On or about October 3, 2020, at approximately 9:41 pm, in the vicinity of 41-14 Vernon Boulevard, QUEENS County and State of New York the Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, jointly and severally in their capacity as Officers, falsely imprisoned, illegally searched in violation of his Constitutional civil right to be free from illegal search by officers, wrongfully touched, forcefully handcuffed and seized the Plaintiff, **MALIQUE HAYNES**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to arrest, search, seize, grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effects as though set forth at length herein.

9. On or about October 3, 2020, at approximately 9:41 pm, in the vicinity of 41-14 Vernon Boulevard, QUEENS County and State of New York the Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, jointly and severally did place Plaintiff, **MALIQUE HAYNES**, in imminent fear of physical contact by approaching the Plaintiff and restraining the Plaintiff. They further unlawfully detained the Plaintiff. All the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about October 3, 2020, at approximately 9:41 pm, in the vicinity of 41-14 Vernon Boulevard, QUEENS County and State of New York the Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a local precinct in the QUEENS County. **Defendant did not charge Mr. Malique Haynes with**

the crimes. The Plaintiff was thereafter held in custody over the course of approximately 4 hours in the custody of the New York City Police Department until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effects as though set forth at length herein.

13. On or about October 3, 2020, at approximately 9:41 pm, in the vicinity of 41-14 Vernon Boulevard, QUEENS County and State of New York the Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's jail facilities, to wit a local police precinct holding cell, and/or to Central Booking. The Plaintiff was thereafter held in custody over the course of approximately ⁸⁻¹³ 4 hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR THE FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS, P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF**

MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020, were at all times relevant, duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

16. At all times mentioned herein, said officers were acting under color of law, to wit; the statutes, ordinances, regulations, policies and customs and usage of the State of New York and City of New York.

17. Plaintiff, **MALIQUE HAYNES**, is and at all times relevant herein, a resident of QUEENS County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

18. The Defendant, **THE CITY OF NEW YORK, MICHAEL ALPERS, P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, is a municipality duly incorporated under the laws of the State of New York.

19. On or about October 3, 2020, the Defendants, while effectuating the arrest of the Plaintiff, **MALIQUE HAYNES**, did grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In the instant case, Plaintiff was arrested for unspecified charges. Petitioner was held in police custody for approximately four (4) hours and released by the police without being charged by the QUEENS District Attorney or arraigned on charges in Criminal Court.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person.

- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.
- h. Freedom from being illegally searched.

21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

22. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

3. Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS, P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, have grossly failed to train and adequately supervise its Officers in the fundamental law of arrest, search and seizure especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not omitted a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate and arrest and the arrest should be based on probable cause.

25. **THE CITY OF NEW YORK**, was negligent by failing to implement a policy with its Department and instruct Officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said Officers of the City of New York and the Police Department are not to arrest or unlawfully detain individuals such as the Plaintiff here were probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the police officers to falsely arrest, illegally detain in custody, unlawfully detain in custody, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.

29. Defendant, **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS, P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN**

AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, illegally keep in custody, unlawfully keep in custody nor use excessive force during the process.

AS AND FOR AN EIGHTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “29” with full force and effects as though set forth at length herein.

31. On or about October 3, 2020, at approximately 9:41 pm, in the vicinity of 41-14 Vernon Boulevard, QUEENS County and State of New York the Defendants, **THE CITY OF NEW YORK, MICHAEL ALPERS P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 3, 2020**, jointly and severally Defendants intentionally neglected to provide adequate medical attention to the Plaintiff in violation of his Eighth Amendment Right against cruel and unusual punishment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction in the amount of one million dollars (\$1,000,000.00), together with attorneys’ fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
November 29, 2021

BY: LAW OFFICE OF JOSE L. NIEVES
JOSE L. NIEVES
Attorney for Plaintiff
213-37 39th Avenue, Suite 184
Bayside, NY 11361-2072

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MALIQUE HAYNES,

Plaintiff,

Against

**THE CITY OF NEW YORK, MICHAEL ALPERS, P.O. OF THE HOUSING PSA 9 PRECINCT, TAX # 963465,
OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN THE ARREST OF MALIQUE HAYNES WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON OCTOBER 3, 2020**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Law Office of JOSE L. NIEVES
BY: JOSE L. NIEVES
Attorney for Plaintiff
213-37 39th Avenue, Suite 184
Bayside, NY 11361-2071
Tel. (631) 861-5094

To: **CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
Michael Alpers, P.O., TAX NO #958234,
HOUSEING PSA #9 Precinct
155-9 Jewel Avenue
Flushing, NY 11367

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated: _____